

Before the
FEDERAL MARITIME COMMISSION

Docket No. 2010 (F)

Simple Forwarding, Inc.

v.

CULines and Norton Lilly International

**COMPLAINANT’S RESPONSE TO RESPONDENT’S VERIFIED ANSWER OF CULINES TO
[sic] COMPLAINT OF SIMPLE FORWARDING**

Complainant Simple Forwarding Inc. (“Complainant” or “Simple Forwarding”), submits this Response to the Respondent CULines Verified Answer. However, Complainant can not refer to it as a Verified Answer to Complaint. Complainant submits this Reply in part under duress, as it is not a true Response to a Verified Answer to a Complaint; since the Respondent’s Answer was not, in actuality, a Response to the Verified Complaint itself.

REQUEST TO STRIKE PORTIONS OF RESPONDENT’S VERIFIED ANSWER

On June 28th of 2024, Respondent filed with the Commission a Motion to Dismiss titled “VERIFIED FIRST MOTION OF SPECIALLY APPEARING RESPONDENT C.U.LINES LIMITED TO DISMISS THE COMPLAINT FOR LACK OF SERVICE OR JURISDICTION.” Despite the fact that the Motion was, per the rules, procedurally unsound and additionally lacked merit; Complainant was nevertheless compelled to Respond in Opposition to Respondent’s Motion in order to preserve its

Rights. While a Motion to Dismiss may be frivolous, a Complainant is often Compelled to Respond in order to avoid potential negative consequences; such as default judgment. Additionally, Responding to the Motion robs it of the potential perception of credibility an unanswered Motion to Dismiss may augur; or of traction, and preserves the Record for potential Appeal. Therefore, doing so is often necessary in order to protect the Complainant's interests and prevent potential adverse outcomes.

The Motion to Dismiss in question was accordingly not granted by way of Ordering the Respondent to Reply to the Verified Complaint instead. In the “ORDER ADDRESSING RESPONDENT CULINES’ MOTION TO DISMISS AND RESPONDENT NORTON LILLY INTERNATIONAL’S JUNE 27, 2024, EMAIL” (July 18th, 2024) issued by Small Claims Officer Theresa Dike, Respondent was informed several times (Order *1 and *2) that the arguments presented in their Motion were appropriate for an actual Response to the Complaint, here:

“those arguments are best raised in CUL’s brief responding to the complaint.” (Order- ¶ 3, Page 2)

here:

“Rather, the issue should be raised in Respondent’s response to the claim. Respondent is similarly free to raise its “first purchaser” argument when it files its response to the Claim.” (Order- ¶ 3, Page 2)

and here:

“Both Respondents should file a response to the claim as specified at Subpart S of the Commission’s Rules of Practice and Procedure (46 C.F.R. § 502.301-305) by July 31, 2024. If Respondent CUL wishes its motion to dismiss to serve as its formal answer to the Claim it should so indicate.” (Order- ¶ 4, Page 2)

Respondent inappropriately uses Complainant's Response to their frivolous Motion as the main bases for far too much of their Verified Answer. Motions to Dismiss are not meant to be fishing expeditions for Respondents who may be lacking their own Responsive arguments and material for Answers to Complaints.

Complainant's entire Oppositional Response to the Respondent's Motion to Dismiss was just that, a Response; and not a Complaint. And it was a Response to an unsound and meritless Motion; made only to avoid any potential unintended negative consequences. The Motion Response was not Simple Forwarding's Verified Complaint, or answer to an answer on the actual Verified Complaint; but a rebuttal of arguments brought forth by Respondent in a frivolous Motion to Dismiss only. The Respondent's reliance on the Complainant's Response to the Motion to Dismiss in their Answer is a blatant attempt to introduce Irrelevant and Prejudicial material into the Record.

a) **LEGAL STANDARD**

Under Federal Rule of Civil Procedure 12(f);

“MOTION TO STRIKE. The court may strike from a pleading an insufficient defense or any redundant, immaterial, impertinent, or scandalous matter.”

In ORDER ON MOTION TO EXTEND TIME TO RESPOND TO MOTION TO STRIKE (Docket No. 22-30, October 06, 2023), Chief Administrative Law Judge Erin M. Wirth, in regard to the Respondent ZIM Integrated Shipping Services Ltd. filing a Separate Motion to Strike stated that:

“While parties have been instructed not to bury requests to strike in footnotes, they also do not need to be separate motions. They can be included in the opposition brief but clearly identified, for example with a heading. As part of their opposition brief, no duty to confer would attach as

there would not be a separate motion.” (Docket No. 22-30 Order on Motion, October 06, 2023 ¶ 5, Pages 1 and 2)

We have acted accordingly by including our Request in this Response.

The Commission has the authority to Strike any matter that is Irrelevant or Immaterial. The Respondent’s Answer should be limited to addressing the Complainant’s Verified Complaint only. Any references to the Complainant’s Response to the Motion to Dismiss in any way, or arguments built on something not in the Complaint but in Complainant’s Motion Response in any way, are irrelevant to a Verified Answer to a Verified Complaint, and serve only to confuse the issues and Prejudice the Complainant.

Accordingly, we request that the Commission Strike those portions of the Respondent’s answer that reference, quote, or argue the Complainant’s Response to the Motion to Dismiss.

BACKGROUND

Simple Forwarding, acting as an OTI and Shipper facilitated the movement of container number TWCU8055871 under CULines Master Bill of Lading number CULVSHA2106318¹, which accrued 21 days of misapplied per diem Charges from the 14th of October through the 3rd of November 2021. After multiple attempts by Complainant to resolve this matter with both Respondents named in their Verified Complaint, on May 28th, 2024 Complainant filed a Verified Complaint with the Federal Maritime Commission naming CULines and alleging violations of “[failure] to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of Claimant per 46 U.S.C. § 41102(c) and Section 545.4 of the Code of Federal Regulations,

1 Respondent makes mention of providing a Master Bill of Lading with their Response, but one is not attached. As of yet, Complainant has not been provided with a Master. Also of note, Aimpacific Services Inc. is a cargo agent in the United States primarily for Eastern Asian carriers, including at one time, World Trade Shipping Limited. Therefore if true, their being on the Master Bill of Lading with World Trade Shipping Limited as the named Shipper isn’t remarkable, as it would be expected in that phase of a shipment as an extension of World Trade Shipping Limited and would be of no particular note to those involved. Regardless, Complainant still has not received any copies of a Master Bill of Lading.

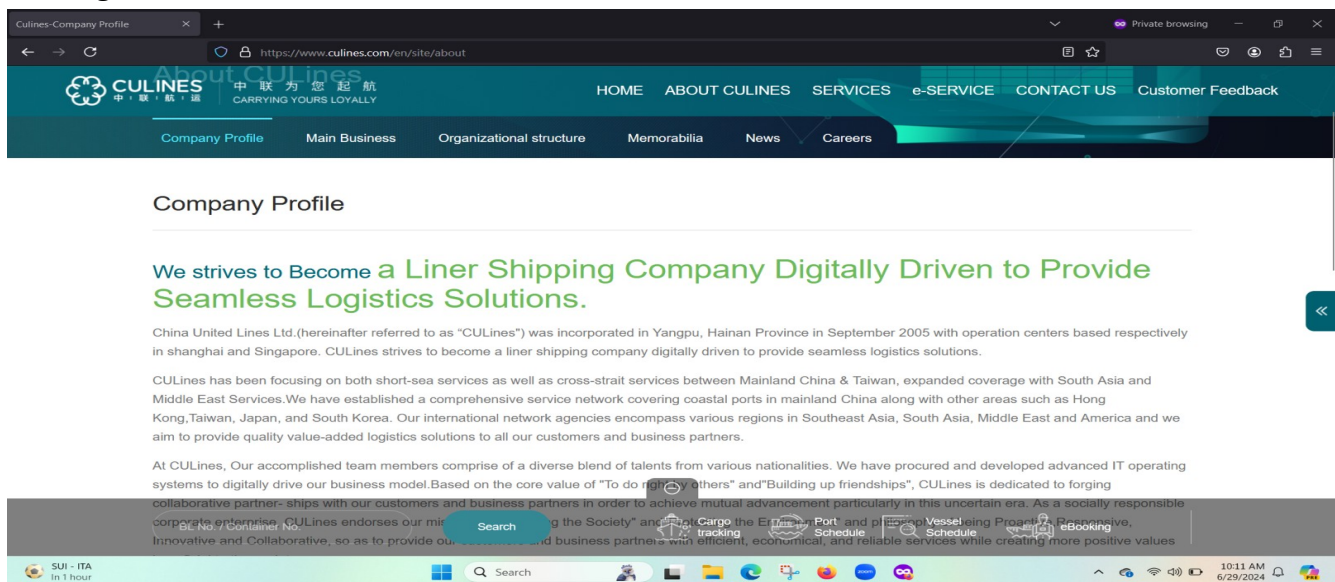
and the Interpretive Rule on Demurrage and Detention Under the Shipping Act,” (Verified Complaint- ¶ 3, Section D); and that “[Respondent’s] knowingly imposed unreasonable and misapplied per diem fees in violation of 46 U.S.C. § 41102(c) and Section 545.4 of the Code of Federal Regulations, and The Interpretive Rule on Demurrage and Detention Under the Shipping Act to Simple Forwarding,” (Verified Complaint- ¶ 3, Section E).

On the 31st of July, Respondent CULines filed with the Commission a Verified Answer. Respondent Norton Lilly has never provided a required Response that Complainant is aware of.

ARGUMENTS

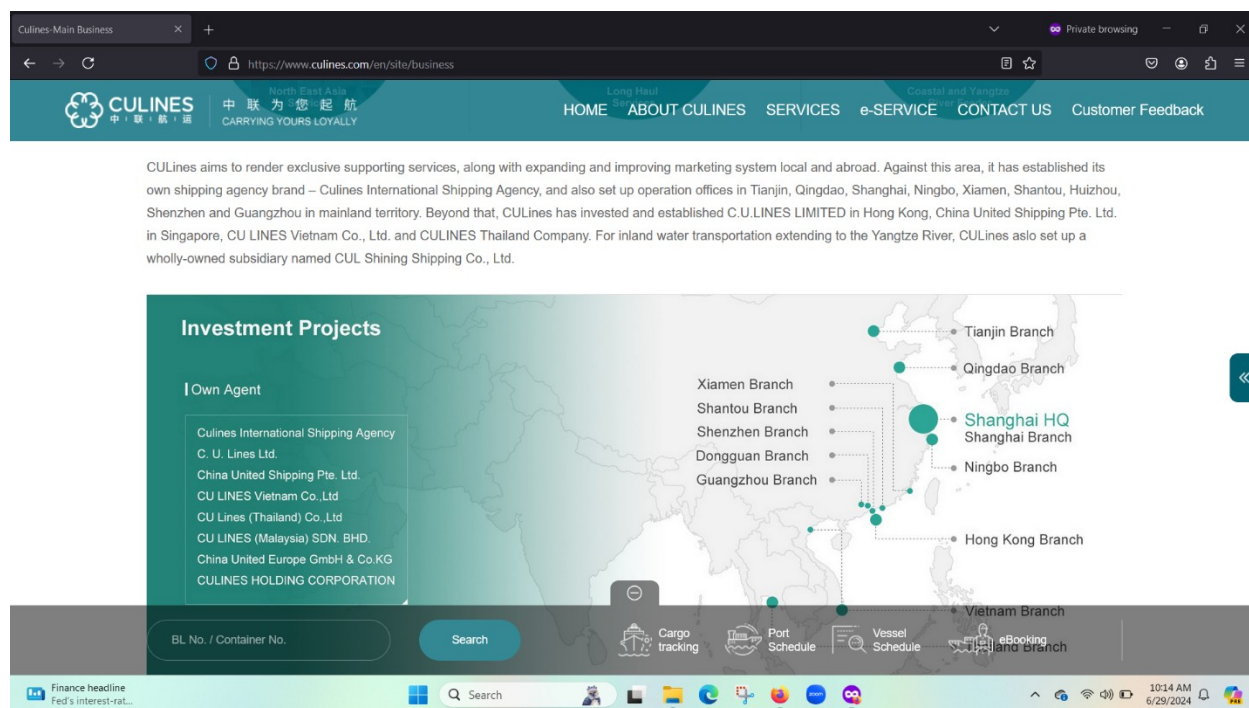
1. THE CORRECT PARTY WAS NAMED

Complainant can not make claims and statements as to service, since they were not a party to that activity. However, Complainant asserts that they named the correct party in their Verified Complaint by naming CULines, aka China United Lines Ltd.



Respondent refers to themselves publicly and repeatedly as CULines, as that is their stated preferred name. CULines and China United Lines Ltd. are the same entity. Respondent states that “CULines is just a shorthand reference to a group of companies.” However, CULines themselves never

makes that statement, in fact they differentiate CULines aka China United Lines Ltd from their other entities, which they refer to as “Own Agent” under a heading of “Investment Projects” with a self-reported Shanghai headquarters for CULines. There is no mention of CULines as a “group”, only of CULines aka China United Lines Ltd as the main entity and a listing of “Own Agents” and “Investment Projects.”



CULines stated and self-reported address is:

Building 12, Lane 706 Wuxing Street,
Pudong District, Shanghai 201204, China

This is the address of the named Respondent in Complainant’s Verified Complaint.

Respondent repeatedly claims that the served party was and is “**not** now or ever a vessel operating common carrier.” However, China United Lines Ltd., aka CULines the self-stated same entity, is the party that assessed fees at the Port Of Los Angeles’ Everport Terminal as *a* Carrier and *the* Carrier.

NN 228		EVERPORT TERMINAL SERVICES INC	
ROUTING SLIP		EQUIPMENT INTERCHANGE RECEIPT	
ROUTING NO. 5305		TIR NO. 6306	
DATE&TIME	2021/10/08 08:49	DATE&TIME	2021/10/08 11:37
CARRIER	CHINA UNITED LINES LTD	CARRIER	CHINA UNITED LINES LTD
TRUCKER	NEW OPPORTUNITIES TRUCKING INC,	TRUCKER	NEW OPPORTUNITIES TRUCKING INC,XP62562
LANE	IB11-FULL OUT	GATE MOVE	FULL OUT
ROUTING SLIP/DRIVER INSTRUCTIONS		CONTAINER	TWCU8055871
EQUIPMENT F/E LINE TYPE SIZE		CHASSIS	APMZ425653
IN GATE		GENSET	
CONT.	TWCU8055871 FUL CULV EE5-	VESSEL-VOYAGE	A DAISEN2137E
550-E-1 : YCXXX		BOOKING/BL	SHA2106318
CHAS: 40		SEAL NUMBERS	SJJB244664
OUT GATE		WEIGHT	12871
CONT:		TEMP.	Vent.
SEAL:		HAZMAT	
CHAS-OUT:		DAMAGES:	
1. SZ/HT/TP : //			
2. Yard Location : EE5-550-E-1 : YCXXX			
3. Pick up LABP/POOL chassis			
5305		5305	

Respondent asserts repeatedly that they are answering on behalf of C.U. Lines Limited. For what reason we do not know, since C.U. Lines Limited is an admitted *agent* for CULines and not the main entity; which is CULines aka China United Lines Ltd. Respondent has apparently chosen from a bouquet of “own agents” to respond as instead of the named Party, CULines. Additionally, Respondent has repeatedly stated that the only CULines entity that acted as an Ocean Common Carrier is “CUL” based in Hong Kong. However, it was not a “CUL” that was conducting business at the Port of Los Angeles and issuing tickets to truckers at United States terminals; it was CULines aka China United Lines Ltd.

Again, while we can not make claims as to Service, Complainant is confident that they named the correct party in their Verified Complaint; and that party is CULines aka China United Lines Ltd. However, Complainant is not interested in further expending their own energy or further forcing the Commission to either on this issue; which Complainant considers to be a fruitless argument of semantics in order to evade responsibility by Respondent. Therefore, Complainant is willing to cure any semantic arguments by naming “China United Lines Ltd aka CULines” in a forthcoming Amended Complaint (a Motion for which will be submitted at a later date).

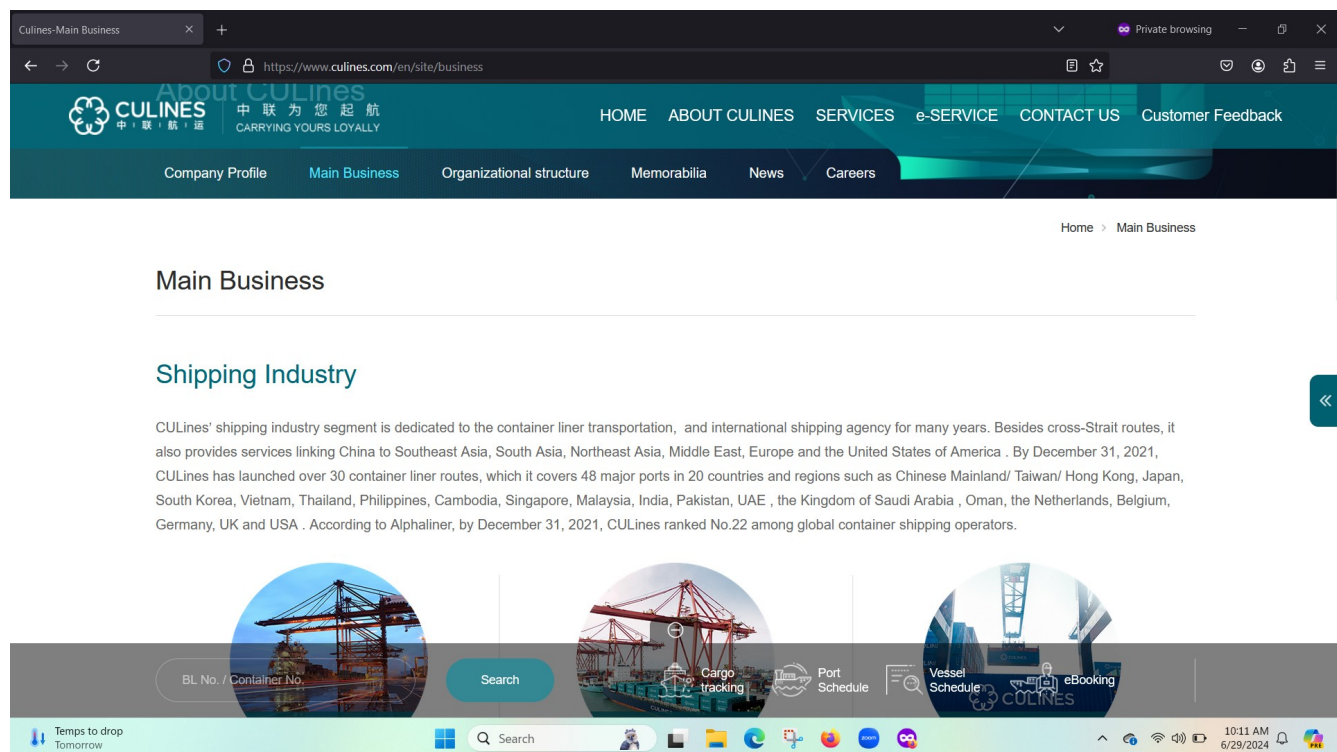
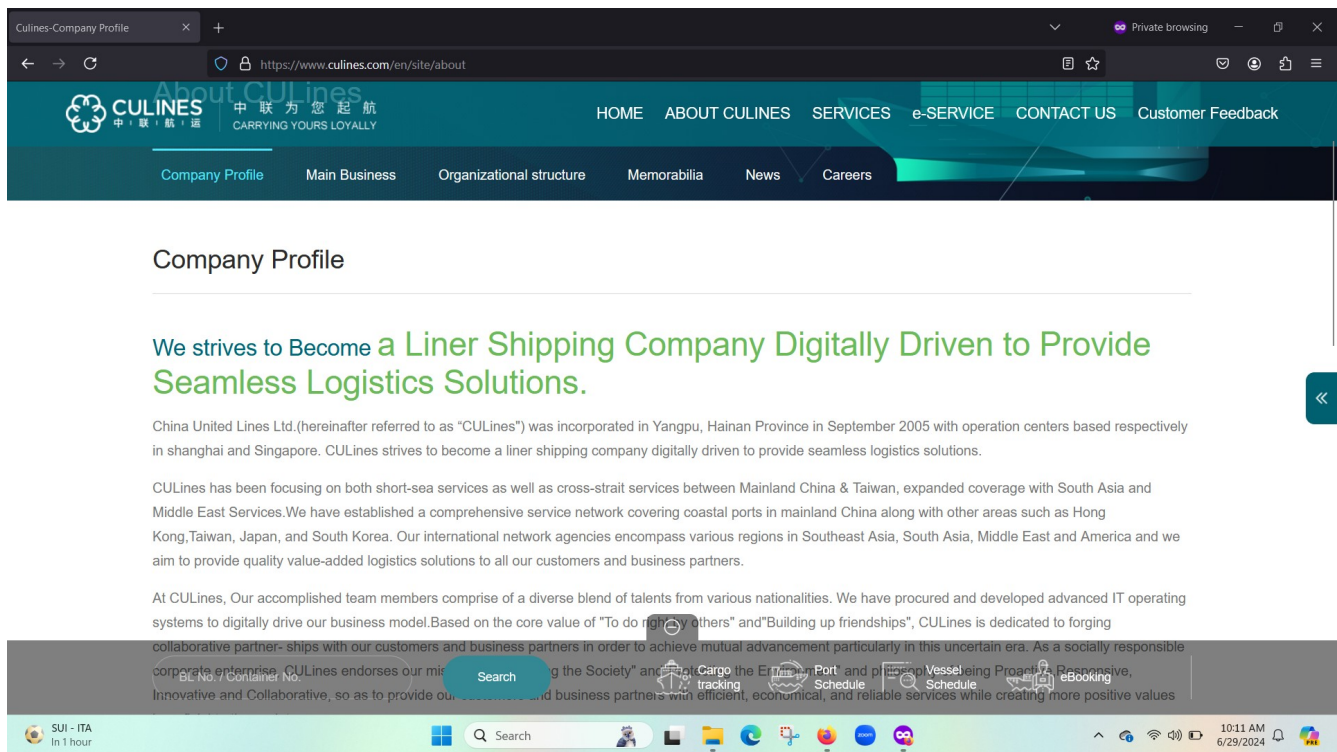
2. THE FMC DOES HAVE PERSONAL JURISDICTION OVER CULINES

Despite Respondents many claims to the contrary; Respondent *does* hold itself out to the general public to provide transportation of cargo by water between the United States and a foreign country.

Respondent did and *does* claim to assume responsibility for the transportation of cargo from origin to destination; and

Respondent did in actuality, and claims to still, use a vessel operating on the high seas to provide such transportation.

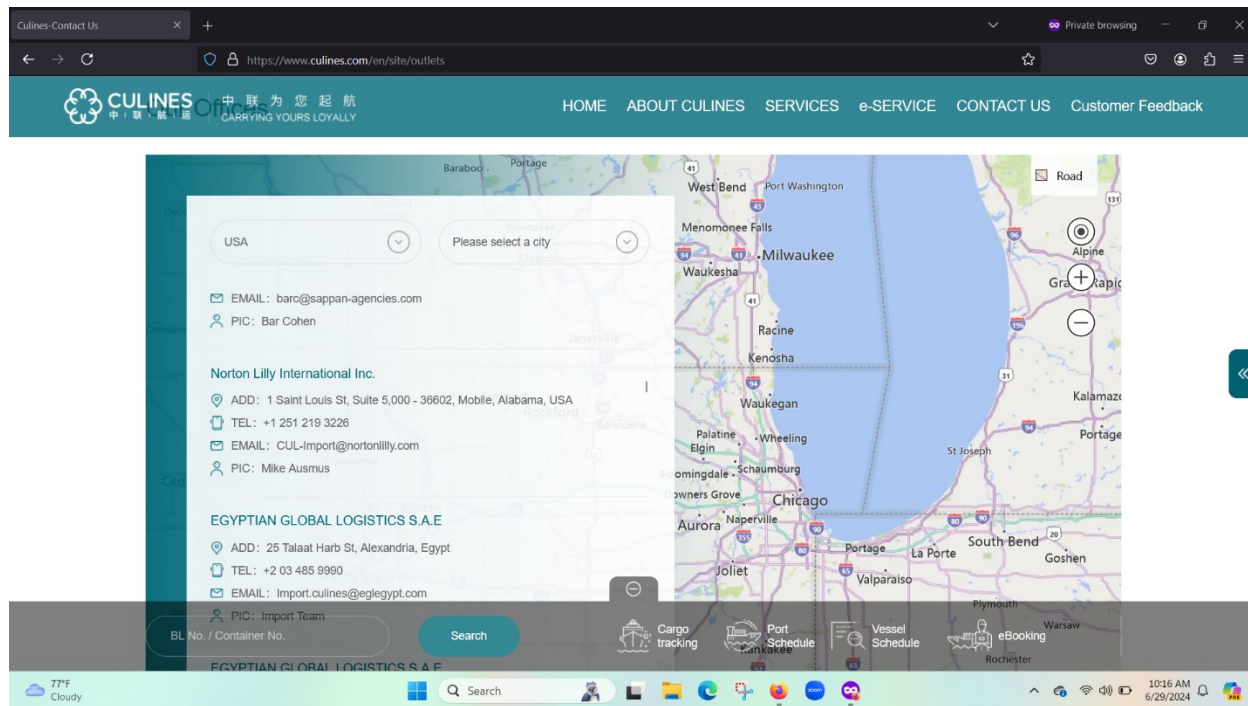
CULines aka China United Lines Ltd still does hold itself out to the general public to provide transportation of cargo by water between the United States and a foreign country for compensation:



Per 46 USC § 501.2 General:

“(a) Statutory functions. The Commission regulates common carriers by water and other persons involved in the oceanborne foreign commerce of the United States under provisions of title 46, subtitle IV of the United States Code and other applicable statutes.”

Additionally, Respondent still maintains a self-reported listed office in the United States:



Respondent states that

“...in order to be a common carrier, an entity must meet all of the following requirements:

- It must hold itself out to the general public to provide transportation of cargo by water between the United States and a foreign country;
- It must assume responsibility for the transportation of cargo from origin to destination; and
- It must use a vessel operating on the high seas to provide such transportation.”

Thus, by its own admission and advertisement, Respondent is a Common Carrier.

Are Common Carriers to be allowed to operate as such in U.S. Waters and Ports, then claim they don't do that anymore, while still holding out that they do, so that they can evade responsibility for violations of the Shipping Act? At no point does Respondent offer any reasoning as to why they or any other party can not be held responsible for actions they *did* commit while conducting activities under the jurisdiction of the Commission. Following the Respondent's logic; when any violation of the law is committed by any Person, just say 'we don't do that anymore and that was the past anyway' and the law can't and shouldn't be enforced? That's setting a very dangerous precedent if so.

3. COMPLAINANT'S ARE DIRECT PURCHASERS

The Respondent cites many cases in regard to this, but doesn't provide real context or convincing reasoning for why the cited cases actually apply to this matter, aside from citing.

The Direct Purchaser rule determines who can sue for violations of the Shipping Act based on alleged overcharges; and under this rule, only parties who directly paid the Carrier, received an assignment from the Direct Purchaser, or are agents of the Direct Purchaser can recover reparations. *See In Re: Vehicle Carrier Services*, 2019 WL 5558120 at *5; *S.A. Chiarella v. Pacon Express Inc.*, 2001 WL 1085424, at *4, 29 S.R.R. 335, 337 (FMC Aug. 15, 2001). This rule limits reparation recovery to parties with "actual injury." *See In Re: Vehicle Carrier Services*, 2018 WL 2214682 at *26. The Direct Purchaser rule aligns with the antitrust Direct Purchaser rule established in *Illinois Brick v. Illinois*, 431 U.S. 720, 726 (1977). *In Re: Vehicle Carrier Services*, 2019 WL 5558120 at *13.

Respondent argues that the Direct Purchaser rule precludes the Complainant from bringing a claim for Reparations because Simple Forwarding did not directly pay the disputed Charges. However, the case law Respondent cites is distinguishable and not applicable to this case or situation. Typically, the Direct Purchaser rule is invoked in cases where a Complainant or Plaintiff,

representing numerous customers or consumers, is too far removed from the Respondent or Defendant within the distribution chain to be classified as a Direct Purchaser. *See Illinois Brick*, 431 U.S. at 726–37; *In Re: Vehicle Carrier Services*, 2019 WL 5558120, at *1.

Courts applying the Direct Purchaser rule often cite three key reasons for excluding claims by indirect purchasers: (1) the potential for duplicate recovery by both direct and indirect purchasers; (2) the evidentiary complexities and uncertainties related to pass-through charges; and (3) The necessity of strengthening federal maritime law enforcement by concentrating full recovery on those who are most closely connected to the wrongdoers. *See Illinois Brick*, at 733-34; *In Re: Vehicle Carrier Services*, 2019 WL 5558120 at *13.

As an example, in *Illinois Brick* the State of Illinois, representing multiple customers, filed an antitrust lawsuit against a brick manufacturer/distributor accused of illegal price-fixing. *Illinois Brick*, 431 U.S. at 727, 735. However, the State of Illinois was neither the first nor the second buyer of the bricks sold by the defendant. *Id.* at 726. Instead, the bricks were initially purchased by masonry contractors, who used them to construct masonry structures. *Id.* These structures were then incorporated into entire buildings by general contractors, and eventually sold to customers like the State of Illinois. *Id.* The Court ruled that the State of Illinois was an indirect purchaser, explaining that this rule is essential to avoid the complicated process of accurately allocating damages among the various parties involved in the distribution chain. *Id.* At 730-37. This is not applicable to this Complaint, as the Complainant is a Direct Purchaser of the Services in question, and any Charges resultant of this Purchase were the direct responsibility of the Complainant, and anyone acting connection with this shipment was doing so on behalf of the Complainant; and there is no other Party involved who can make a Claim for Reparations, rendering the potential issue of a complicated allocation calculation process, moot.

In a similar case, *In Re: Vehicle Carrier Services*, the plaintiffs were two groups: (i) a group of consumers and vehicle dealers, and (ii) a group of shippers and ocean transportation intermediaries. These groups filed class actions against the respondents, who were providers of vehicle carrier services, alleging a conspiracy to fix rates and manipulate market share for transporting vehicles aboard vessels. *In Re: Vehicle Carrier Services*, 2019 WL 5558120, at *1. The consumers and dealers claimed that they paid inflated rates indirectly because these higher rates affected their cost of buying or leasing a vehicle. See *id.* The Commission determined that the plaintiffs in group (i) were indirect Purchasers without standing to seek reparations due to their distance from the distribution chain, disqualifying them as Direct Purchasers. See *id.* At *7, 13–14. The Commission stated that allowing both groups to sue the Respondents for reparations could lead to duplicate recovery, and that determining reparations could be a complex and costly process for all parties involved. The Commission also noted that analyzing thousands of transactional documents to understand how much of the overcharge was passed along to each group of complainants could be challenging. This potential evidentiary complexity favored disallowing a claim by the customer and dealer group of plaintiffs. However, in this case, there is no risk of duplicate recovery and there is no need for apportionment or complex evidentiary analysis to determine the allocation of the charges.

Similarly, in *Guam v. Pacific Far East Line, Inc.*, the complainant attempted "to sue for reparation on behalf of others." *Guam v. Pacific Far East Line, Inc.*, 7 S.R.R. 167, 168 (ALJ 1966). This attempt was rejected due to the Commission's lack of statutory authority to hear such a claim. *Id.* Guam subsequently filed another lawsuit in 1989, this time seeking to sue on behalf of others as *parens patriae*. *Gov't of Guam v. Sea-Land*, 25 S.R.R. 842 (ALJ 1990). Guam's claim was once again dismissed "[i]nsofar as the Complaint [sought] reparation ... for shipments made by other shippers." *Id.* at 842.

However, these examples can be easily distinguished from the present case. Unlike *Illinois Brick* and *In Re: Vehicle Carrier Services*, Complainant does not represent multiple customers or consumers, and Complainant is not positioned too far away from the distribution chain to be considered a Direct Purchaser.

As discussed previously, the three concerns highlighted in *Illinois Brick* and *In Re: Vehicle Carrier Services* do not apply in this case. To begin with, there is no risk of duplicate recovery by both Direct and indirect Purchasers. The only party truly harmed is the Complainant, who is responsible for paying the Charges. See *Intermodal Motor Carriers Conference, American Trucking Ass’n, Inc. v. Ocema*, Docket No. 20-14, Doc. 150 at p. 70 (FMC Feb. 23, 2024) (stating that the party suffering the harm is the injured party). In this instance, the only party harmed was the Complainant. Additionally, no evidentiary complexities arise as the records pertaining to the disputed Charges are minimal and in the possession of the Complainant. There will also be no need for a complex analysis to determine the amount or percentage of the Charges passed along to the Complainant because the Complainant paid for all of the Charges, which consist of only the single transaction of \$6825.00. Most significantly, effective enforcement of maritime law will be achieved by providing recovery to the Party who was directly harmed; and that Party is the Complainant.

Complainant Simple Forwarding Inc., acted as the OTI for a 40’ container of goods from Shanghai to Los Angeles that was Shipped on Board on or around September 09, 2021. In a common practice; World Trade Shipping Limited (“WTSL”), another OTI who is based in Hong Kong, acted as an agent (“cargo agent”) on behalf of Simple Forwarding, in China. As such, WTSL acted on behalf of Complainant *and* as their agent; making Complainant the Direct Purchaser both as a literal Direct Purchaser and an agent for Direct Purchaser.

Additionally, Complainant is the party that *actually* paid for the initial services. Any invoice for cargo movement presented to WTSL by the Respondent was an invoice to Complainant; and WTSL, in acting on behalf of the Complainant, accordingly presented any invoice for payment. The House Bill of Lading issued by WTSL naming Simple Forwarding as the Consignee further confirms that Complainant is the Purchaser and Party responsible for the cargo and the shipment. WTSL only acted as an intermediary and conduit for the Direct Purchaser, Simple Forwarding.

Any Party involved in this shipment was acting on behalf of, and for, the Complainant. This includes trucking, and the same reasoning and arguments as above apply. No one involved in the trucking was not acting on behalf of, or for, Complainant. Complainant contracted with TQL, a trucking provider and broker, to facilitate the inland movement of the container. TQL and any Party dispatched by them, were acting on behalf of, and for, Simple Forwarding.

The long-standing practice of erroneously billing truckers at the port was a coercive means of ensuring that VOCCs and MTOs were paid immediately, regardless of who was actually responsible for payment or the validity of the charges (something that the Commission recognizes and addresses with the February 23rd 2024 Final Rule on Detention and Demurrage Billing Practices). Truckers were invoiced for and burdened with charges that were not theirs to bear. If these invoices were ignored, their livelihoods were threatened by the Carriers threats to shut them out of the ports, ensuring they could not run their businesses. Erroneous billing does not create a contractual relationship between a trucker and a VOCC, and in this case it doesn't matter anyway, as New Opportunities Trucking was there on behalf of Complainant; nor did New Opportunities Trucking or TQL sustain harm or injury.

Receiveables Transaction Inquiry - Document - TQL (Kevan Stewart)

OK

Redisplay

View

All-in-One View

File

Print

Tools

Help

Open Note

Actions

View

File

Help

Documents:

by Document Number

All

From:

18434839R

To:

18434839RZ

Sort by:

Type

Ascending

Origin	Type	Document Number	Customer ID	Document Amount
Doc. Date	Due Date	Check Number	Discount Amount	Amount Remaining
OPEN	SLS	18434839R	10903394	\$6,825.00
2/10/2022	2/10/2022		\$0.00	\$0.00

Sara Dandan

<sara@fouroneone.io>

to Charles

Aug 22, 2024, 11:50 AM (3 days ago)

Hi Charles,

Actually, can you please confirm that it was Simple Forwarding/INXPRESS who paid the \$6825.00 Invoice 18434839R? Just so there's no doubt.

Thank you so much again. That will be my last request for the day and I promise to leave you to it, ha ha.

Regards,

Sara Dandan, FourOneOne LLC
Admitted to Practice Before the Federal Maritime Commission as a Non-Attorney

Charles Mcrae

to Sara

Aug 22, 2024, 11:53 AM (3 days ago)

Hello,

I'm covered for the day just answering emails as they come, no bother at all.

Confirmed, this is for Simple Forwarding/INXPRESS.

It can not be reasonably argued that Simple Forwarding is too far down the chain to make a claim for reparations because Simple Forwarding *is* the chain. The only Party that's injured is the Party who is missing \$6825.00 paid in misapplied Per Diem Charges, and that is Simple Forwarding, who as the Direct Purchaser of the Services and the OTI, was the ultimate responsible Party for any charges, whether they be overcharges or otherwise.

Of note is the fact that at no time did CULines or its office in Alabama inform Simple Forwarding that they thought they were not the Party responsible for the Charges or act in that matter accordingly. In fact, it was the direct opposite, with a months-long back and forth between the 3 Parties (Simple Forwarding, Norton Lilly International, and CULines) regarding the Charges in dispute in regards to a refund; an explicit acknowledgment that both Respondents consider Complainant to be the Purchaser and responsible Party. This also challenges Respondent's assertion that the Complainant is a "stranger" to CULines.

Respondent Norton Lilly even went so far as to offer a potential partial refund to Simple Forwarding, in an email exchange with Complainant's Representative Sara Dandan that included CULines:

Mike Ausmus <mausmus@nortonlilly.com>
To: Sara Dandan <sara@fouroneone.io>, CUL-perdiem <CUL-perdiem@nortonlilly.com>, Matthew Snetsinger <msnetsinger@nortonlilly.com>, "piddyhu@culines.com" <piddyhu@culines.com>, "sharonliu@culines.com" <sharonliu@culines.com>

Sara,

Confirming receipt. Per your backup, I did see appointments were available on 10/19 at LBCT. In lieu of full waiver and refund, are you open to a partial refund of 50%?

As CUL is the ocean carrier, there are the only entity who can decide to waive and refund these charges. Once your response is received, I will review with CUL and respond with their decision by 12/12.

Thanks,

Michael Ausmus

Norton Lilly International

Senior Manager Liner Services

251-219-3310 (O)

251-458-7177 (M)

Personal: mausmus@nortonlilly.com



One St. Louis Centre, Suite 5000, Mobile, AL 36602

www.nortonlilly.com

An offer which Complainant rightfully rejected, as a full refund serves justice.

Nevertheless, by CULines own current definitions and Bill of Lading Terms, Complainant is a

“Merchant” :

‘ **“Merchant” includes any person who at any time has been or becomes the shipper, consignor, consignee, receiver of the Goods, the Holder of this Bill of lading, any person or entity owning or entitled to the possession of the goods or this Bill of Lading and anyone acting on behalf of any such person or entity.”**’ (emphasis is ours)

TERMS AND CONDITIONS

1. DEFINITIONS

The following words both on the face and back hereof have the meanings hereby assigned:

“Carrier” means CHINA UNITED LINES LIMITED.

“Merchant” includes any person who at any time has been or becomes the shipper, consignor, consignee, receiver of the Goods, the Holder of this Bill of lading, any person or entity owning or entitled to the possession of the goods or this Bill of Lading and anyone acting on behalf of any such person or entity.

Simple Forwarding has the right to Claim Reparations for these charges as the Injured Party under the Shipping Act and Commission case law, and Respondent has failed to sufficiently prove otherwise.

4. COMPLAINANT HAS PROVEN A VIOLATION

Respondent Claims that Complainant:

“does not present any evidence that, with respect to the unidentified shipment(s) and unidentified date(s) it was unable to return the relevant containers. Rather, it asserts that CULines has such evidence. It must be obvious that an adjudicatory tribunal may not make a decision based on evidence that is not actually presented to the tribunal, but only said to exist somewhere. And just as obviously, Claimant has presented nothing to prove the new elements required by the D.C. Circuit.” (Answer at *13)

Simple Forwarding submitted **71 Pages** of screenshots with their Complaint to the Commission as evidence for the time period of October 14th-31st of 2021. As for the time period of November 1st through the 3rd, Respondent has never offered information as to Closures and appointment availability

when asked in the past; and so Complainant operates under the reasonable assumption that those 3 days follow the same pattern as the others. If not, and Respondent shows so, Complainant will adjust the Reparations amount requested accordingly.

Complainant restates their Claim that Respondent has been in possession of this evidence:

Friedy Hershler <friedy@simpleforwarding.com>
To: CUL-perdiem <CUL-perdiem@nortonlilly.com>
Cc: Laura Chica <laura.chica@newopportunitiesrucking.com>

Tue, Jan 31, 2023 at 11:42 AM

Hello Jude,

Thank you for your prompt response, I really hope you can help me.

We received an invoice for Per diem from our trucker for Container TWCU8055871. Please see attached invoice.

I would like to dispute this invoice as the empty container was not returned to port on time as there were no availabilities, please see below;

CU Lines 40 ST 2021-10-14
CU Lines 40 ST 2021-10-15
CU Lines 40 ST 2021-10-16
CU Lines 40 ST 2021-10-17
CU Lines 40 ST 2021-10-18
CU Lines 40 ST 2021-10-19
CU Lines 40 ST 2021-10-20
CU Lines 40 ST 2021-10-21
CU Lines 40 ST 2021-10-22
CU Lines 40 ST 2021-10-23
CU Lines 40 ST 2021-10-24
CU Lines 40 ST 2021-10-25
CU Lines 40 ST 2021-10-26
CU Lines 40 ST 2021-10-27
CU Lines 40 ST 2021-10-28
CU Lines 40 ST 2021-10-29
CU Lines 40 ST 2021-10-30
CU Lines 40 ST 2021-10-31

Awaiting your reply,
Friedy
[Quoted text hidden]

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58K

Any other Arguments made by the Respondent as to specificity of the Claim will be cured in the filed Amended Complaint if Complainant is Granted Leave; as Complainant wishes to, of their own volition, clarify and specify certain components of their Complaint.

CONCLUSION

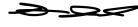
In conclusion, the Complainant has answered what we could, given our Request to Strike; and we ask that the Commission issue an Order to Strike, and that the Proceedings continue accordingly.

Respectfully submitted,

Sara Dandan
FourOneOne LLC
2501 Chatham Rd, Suite 8082
Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature:  _____

Dated: 08/25/2024

CERTIFICATE OF SERVICE

I certify that on August 25th, 2024, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission, and a copy was served via email on all counsel of record:

Sara Dandan

